

Price 25 Cents
30 Cents
in
Canada

MARCH 1929

THE *Illustrated* BLUE BOOK

MAGAZINE

N.S.E.

"TANAR" A New Novel by
the Author of
"TARZAN"



\$500 IN
CASH PRIZES
for Real
Experiences

Also
Rollin Brown
Captain Dingle
Clarence Herbert New
Seven Anderton
Bertram Atkey
& others

Price 25 Cents
30 Cents
in
Canada

MARCH 1929

THE *Illustrated*
BLUE BOOK
MAGAZINE

N.S.E.

"TANAR" A New Novel by
the Author of
"TARZAN"

\$500 IN
CASH PRIZES
for Real
Experiences

Also
Rollin Brown
Captain Dingle
Clarence Herbert New
Seven Anderton
Bertram Atkey
& others



The Project Gutenberg eBook of Buckin' the air

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Buckin' the air

Author: Bud La Mar

Illustrator: Frank J. Hoban

Release date: January 1, 2026 [eBook #77592]

Language: English

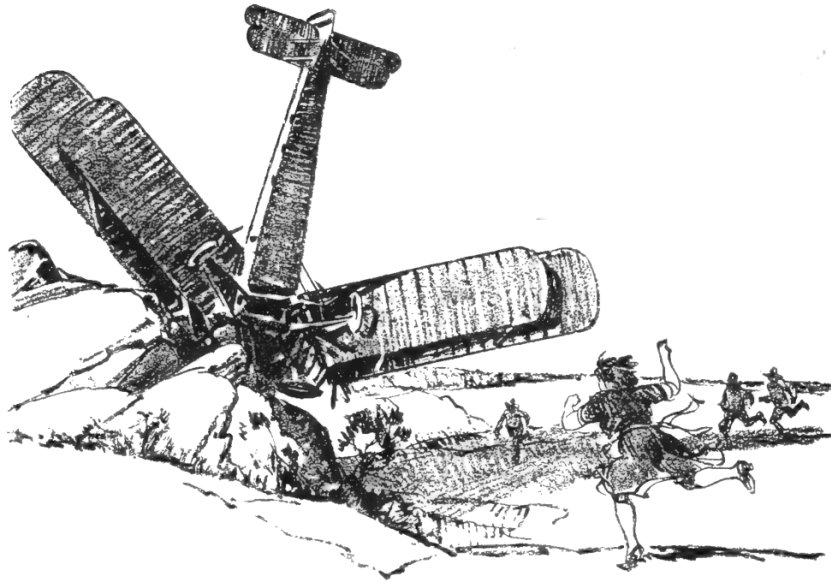
Original publication: Chicago, IL: The Consolidated Magazines Corporation, 1929

Other information and formats: www.gutenberg.org/ebooks/77592

Credits: Prepared by volunteers at BookCove (bookcove.net)

*** START OF THE PROJECT GUTENBERG EBOOK BUCKIN' THE
AIR ***

Buckin' the Air



Buckin' the Air

By Bud La Mar

Illustrated by Frank Hoban

The wild, wild adventure of two demon rodeo-riders who dare a new element in a airplane is here picturesquely set forth.

Just previous to the disastrous events which I am about to relate, Bearcat Gibson and me was the happiest cowboys this side of Denver. Old Lady Luck had patted us on the back and filled our pockets. The trail ahead was glitterin' bright with the promise of more to come. After a long spell of hard luck, we finally stood on our own feet, lookin' old man Trouble in the eye and daring him to do his worst.

After a great deal of planning and schemin' we had managed to sneak up on the rest of the boys and win most all the money offered for prizes at the

Eldora rodeo. This in itself was reason enough to cause great rejoicing, but on the last day of the Eldora show we had received a message from our old pal Clay Hinkle, bearing news of a very important and joyous nature. The letter read as follows:

Dere boys:

Well, you ok horsethieves, I thot I wood rite you a few lines to let you no thet I had bin elekted head judge of the San Dominick Rodeo. Maybe you thot I had fergit about the time you got me out of jale in Berryville for chawin the cherifs ear off ha ha! Well, ole Clay Hinkle is a man which does not fergit past favors. If yore intrested in splitin 1st and 2d mony in the bronk ridin I beg to state thet I will be only too glad to give it to you. You understand I wood not go around offerin this propozichon to every Tom, Dick and Harry, but you boys bein spechel frends of mine I thot I wood give you 1st krak at it at the reguler rates 50-50. This is a bargain on akount the competichon will be very keen and I feel shure I coud git better terms only ole Clay Hinkle is a man which does not fergit past favors.

I beg to remain as ever yores sincerly and Korjaly yores.

CLAY HINKLE.

* * * * *

Of course we aimed to make the San Dominick stampede anyhow, but like Clay wrote, the competition was always very keen at that show on account it caught all the top hands on their way to the Eastern contests. Even after parting with half our winnings, we stood to collect a flock of money which wasn't to be sneezed at.

We cashed the checks donated to us by the Eldora rodeo committee and proceeded to stage a celebration befitting the occasion, before getting under way for San Dominick.

But as luck would have it, the natives mistook our friendly ceremony for an effort on our part to destroy and plunder their moral community. Trouble came on the heels of this unfounded suspicion, and we was called upon to surrender and be led peaceful from the scene.

The marshal who made the suggestion was a big, tall, nervous-looking *hombre* with a diving Adam's apple and a large flowing pinto mustache. The only weapon he carried—that we could see, anyway—was a big crooked cane. And we wasn't to be overawed by any such ineffective display of force.

"Listen, Wild Bill," said Bearcat to the marshal. "As much as we 'preciate your kind offer, and not wishin' to cast any asparagus at your jail, we been in better ones and could not possibly be interested in visitin' yours."

A crowd had collected around us. Election-time was drawin' near, and the marshal had to protect his reputation. His Adam's apple made a few rapid trips from his chin to his belt-buckle and back again; the spotted misplaced horse's tail bristled like a bunch of quills; he elevated the crooked cane and charged us in the scientific fashion of a blind bull.

"Whoo—ah!" said the marshal, snorting and pawing at the air like a bear with a wasp up his nose. But immediate developments disclosed the surprising fact that getting hit with a cane wasn't a thing which we considered a privilege.

Bearcat and me stepped aside and allowed the marshal to get between us. Then Bearcat placed a boot-heel in the seat of his pants and pushed hard. The marshal's gasping form shot across the sidewalk like a flying comet and plowed its way through a plate-glass window which protected a display of elegant female lingerie.

* * * * *

The old walrus began makin' frantic swimmin' motions, wallowin' in a sea of broken glass and silk negligees. Puffing like a wind-broke horse and

clutching madly for support, he pulled down whole rows of pink stockin's and bright-colored, beflowered shawls and kimonos. Two wax dummies with Fourth-of-July complexions and adorned in glitterin' Paris creations came tumblin' down on top of him, addin' to the final touch of destruction.

"Whoo—ah!" screamed the marshal from under the smiling dummies. "Just wait till I git my hands on ye!"

We was willing to wait. We couldn't got away had we wanted to. Holding our shaking sides with both hands, we howled like a pair of treed panthers. This was too gosh-awful funny for words. Tears running from our eyes, we failed to notice the approach of a new and unlooked-for enemy, which turned out to be far more dangerous than the befuddled marshal.

The first I knew of it was when something heavy crashed on top of my head, which was luckily protected by my big hat. I sat down on the sidewalk and rolled to the side, lookin' up to see who was attackin' me. I beheld a large, powerful female belaborin' Bearcat with what looked to me like a bare human leg cut off above the knee. Not considering it safe to remain gazing at this strange, grisly spectacle, I regained a standing posture and took out from there like a wild colt with his tail on fire.

On the edge of town I was passed by a flyin' shadow which I recognized as Bearcat Gibson. I glanced fearfully back over my shoulder and saw a big mob of people hot on our trail. The marshal led the chase, waving a big old pistol he had produced from somewhere, and scattering silk doodads in his wake. Right on his heels Battling Mary followed, brandishing the human leg and uttering blood-curdling yells. In another half-second I had caught up with Bearcat.

We was leavin' Eldora, havin' become awful tired and disgusted with that particular metropolis.

* * * * *

A mile farther and still goin' strong, we caught up with a dilapidated flivver which was fluttering between the fences at the speed of a limping

turtle. Two men dressed in greasy unionalls sat in the front seat, fiddling with numerous buttons and levers which seemed to have bearin' on the exhausted engine under the hood.

"Hop in, boys!" said the driver. "You might beat us on a short spurt, but you'll get farther with old Lili."

We agreed with him on that, as we was beginning to falter in our stride. We scrambled inside the car, which seemed to grunt and squeak in protest at the added weight. Our pursuers had not yet appeared over the last hill, and we sank down on the back seat, feeling very kindly toward the men which had surely rescued us from a terrible fate.

"Lord! Knockin' folks around with human legs!" said I, shuddering at the thought. "Can you imagine anything so crool?"

"It wasn't no human leg," put in Bearcat. "It was one of them there artificial things they display stockings on, in stores. The woman was the owner of the layout spoilt by the marshal. They should watch that woman. She'll murder somebody one of these days. I swear I never see such a mad person!" Bearcat rubbed various parts of his anatomy, very careful.

"Where you boys goin'?" grinned one of the men in the front seat.

"We aint so much goin' anywheres," I answered. "We're just leavin' Eldora."

"Well, we'll have to let you out pretty soon. We aint goin' far," continued the man.

* * * * *

Disaster was starin' us in the face, and despair settled upon us. We knew them mad natives wouldn't give up the chase so easy. Most likely they'd have reward-posters out before morning. Dead or alive!

The little car had come to a stop in front of a gate opening into a large pasture. In the pasture we saw an airypplane setting on the ground.

"As far as we go!" said the man, gettin' out of the car to open the gate. "That's our crate in there."

The other fellow turned around and looked us over.

“Don’t want to take a ride in the old lady, do you, boys?” he said anxious-like. “The thrill of a lifetime, and safer than old Lili, here. Three dollars only for fifteen minutes of exhilarating flying through the ether!”

I have a suspicion we could of went for a dollar and a half. You could tell at a glance that prosperity had deserted them particular aviators at the last crossroads. But as much as I desired to leave these parts, I did not crave any flying experiences. It was too much like jumping from the skillet into the stove.

But my crazy partner right away shut both eyes and jumped astraddle of the idea with all the enthusiasm of a roving preacher for a repenting sinner.

“Shore!” he whispered, nudging me in the ribs. “We could get them fellows to take us to San Dominick, where a rodeo is to be put on in a few days. Boy, we’re shore lucky!” Then, without waitin’ for me to say a word, he assumed the important and worried expression of a man who has just bought a string of oil-wells and has only a few minutes to reach a radio in order to accept the nomination.

“We’d like to go to San Dominick,” he said to the aviator. “And we’d like to leave fairly soon.”

The aviator’s knees kinda buckled under him. All he could do for a spell was to look at us with tears in his eyes.

“Do you mean it?” he asked. “Boys, please don’t kid a poor old man!”

“Shore we mean it,” answered Bearcat. “If the price is right.”

“The price couldn’t be anything but right,” said the aviator. “A few twists here and there, and we’re goin’ from here, gentlemen.”

“Hey!” I put in, alarmed at the way things were coming out. “Who said I wanted to fly? I’m askin’ you. Did I ever express the slightest wish to do so? Did I, eh?”

The aviator cast a murderous and poisonous look upon me. Words dropped from his mouth like sweet drops of strychnine.

“Oh, come, now!” he said, trying to be pleasant. “There’s no danger, you know. Surely a brave cowboy like you is not afraid of a little spin in the air!”

“I might be brave,” said I. “And I might be a cowboy. But,”—and I pronounced every word clear and loud,—“I wouldn’t care to take any spins in the air!”

“Never mind him,” put in Bearcat. “He’s only foolin’. He just dotes on airypplanes and aviators and things like that. Why, that fellow is the original aviation fan!”

Cleanin’ me! Can you beat that—or tie it, even? I was struck dumb.

* * * * *

The flivver went bouncing across the pasture and stopped alongside the airypplane. The aviators got out and started screwing up loose connections.

“It’s no use, Bearcat,” I stated very firm. “I have no taste for aviation.” I’d heard about people riding in airypplanes, but I wasn’t sufficiently informed on the subject to enter into discussion of it. Furthermore, I’d just as soon it hadn’t been brought to my attention.

But Bearcat was a stubborn cuss and gifted with the power of persuasion. There wasn’t nothing he didn’t know about the safety devices used in modern aviation. For instance: out of 15,347 flights launched in the State of Maryland alone, in one year, fourteen only had been fatal. Which to his way of thinkin’ was a very low rate. Accordin’ to my opinion, fourteen dead men was fourteen dead men, even if everybody in Maryland had all gone crazy and took to leaping around in the air like a bunch of whizzing pelicans.

“Here!” said Bearcat. “While the man is tyin’ a few of the vital parts together with hay-wire, I will explain the fundamental principles to you. This,” he declaimed, pointing to a couple of oars, “this is the paddle. It paddles the wings. This,” he continued, indicating a growth on the tail end, “this takes the place of the tailfeathers on a bird.”

* * * * *

But I wasn't to be misled so easy; and anyway, if Bearcat knew the difference between a doughnut-cutter and a two-dollar bill, he had never showed any signs of it to me. Besides, I have an eye for details, and he can't make me believe that a good Number One airyplane should have rusty spots on it and be punched full of holes. When a Ford leaks oil, there's something wrong with it. Well, that thing leaked oil. And the longer I inspected the wreck of old 97, the more I was reminded of a busted kite which had been drug through a prickly-pear thicket.

Just then I overheard part of the conversation between the aviators.

"You give me a hand gettin' started," said one. "Then you can take our stuff to San Dominick in the car."

"Got enough gas for this flight?" asked the other.

"Well, I wouldn't be too sure, but I think there's enough."

He thought there was enough! Well sir, right then is when I made up my mind to take a airyplane trip. If that bleary-eyed fool was willin' to run out of gas while flyin' through the ether, I was too!

I noticed Bearcat had bleached out some. "Did you hear that?" he whispered.



I glanced fearfully back over my shoulder. The marshal led the chase; right on his heels Battling Mary followed, brandishing her human leg.

“Shore!” says I. “Did you know that out of twenty-six fatal airyplane wrecks in Arkansaw alone, twenty-five was caused from runnin’ out of gas? But shucks, there aint nothing to worry about. The gadget paddles the wings and the pin-feathers do the rest. Nothing to it!”

“Hum!” growls Bearcat lookin’ suspicious. “Hum!”

About then the experts had decided everything was O.K., and they got ready to start her up. Me and Bearcat moved to a safe location where we could watch, and the pilot clumb in and fiddled around with various gimmicks. The other bird stood by the paddle.

“Contact!” he yells—just like that.

“Contact!” growls the other fellow in a deep tone of voice. Then the *hombre* outside puts on a dance, the likes of which I have never witnessed before, not even durin’ my stay with the Osages. He grabs one end of the paddle, throws one leg up in the graceful fashion of a toe-dancer, swings and shivers a couple of times and jerks down on it.

Nothing happens. I felt sorry for him. You could tell he was disappointed. Something big should have come of it.

He looks up pitiful-like and yelps again: “Contact!”

“Contact!” rumbles the pilot, and on with the dance. The fellow goes through every single motion again. You could tell it was a question of great importance not to miss anything. He pounces down on that paddle like a hungry coyote on a gopher. And then—hell busts loose!

* * * * *

My hat is jerked off my head like it had been shot off, and my shirt casts loose from its moorings and flies up in my face, blinding me complete. I falls over backward, clutching wildly for support. I feels a form wriggling under me. “Get off’n me, you idjit!” yelps a faint voice through the roar and thunder of the cyclone and hailstorm raging around us. “Get off from under me,” I replies, peeved. “I saw that hole first!”

I managed to pull the shirt off my face and took a quick look around. Well, could you believe it? There wasn't no cyclone. Everything was fine and serene as before, only the old paddle had gone wild, and the tin whipporwill was shakin' fearsome, and roaring like four hundred mad bulls in a tunnel. The aviator was waving for us to get on. Holding our hats against our ears, we circled the old butter-tub on the run and approached it from the rear. I clumb in a hole in front of the pilot, and Bearcat settled himself in another hole in front of me.

All at once the roaring increased—although I wouldn't of thought it possible—and we started bumping across the field. Faster and faster we lunged along until the air was slapping me in the face like a wet saddle-blanket.

* * * * *

Ever since a safe fell on me when I was little, I have been given to imagining wrecks and catastrophes. I didn't need to stretch my imagination now. First I got to thinkin' what would happen if we come across a big ditch, or a rock, or a cow or other objects too ghastly to dwell upon. Then I looked down, and there it was—a fresh-plowed field which looked rougher to me than a chain of mountains.... Lord, Lord, thinks I, this is no place for old Slocum Bill. I still have a chance to get away from this hell-bending Roman candle, and I aims to take it. I starts to climb off, whatever comes of it. I am accustomed to fallin' and rollin' on the ground. I know how to relax and protect myself. But all them fine principles don't apply to a smashed-up orange crate with wings. Now is the time for me and 97 to separate, for better or for worse.

I am about half out when I feels a hand on my shoulder. I takes a look and sees the pilot smiling, and then I makes a startling discovery. We had left old Mother Earth and I was about to fling myself through a hundred feet of empty air and not a hand-holt in sight! What's more, I caught a glimpse of a big car tearing down the road toward us, and in it was the marshal and Battling Mary and several other warlike-looking parties.

I settled back in my seat and watches the plowed field shrink to the size of a handkerchief. Well, here we are—it's too late to do anything now! I have one happy thought, and that's what I will do to Bearcat Gibson for getting me into such a predicament. We fly on and on through the exhilarating ether, gasping for breath and watching the scenery from where no scenery should be seen.

* * * * *

After about ten minutes my sensible ears began to tell me there was something rotten somewhere not connected with the state of Denmark. I don't know if an airyplane in good working order is supposed to sputter, but this one was sputtering, and I didn't like it. Bearcat looked back at me, and his bogged-out eyes did not indicate a peaceful state of mind, either. I craned my neck around, and while I was doing so the sputtering changed to coughing, and the coughing died out, and our pilot said so we both could hear it: "Outa gas ... Hold tight ... I'll land 'er ... No trouble."

Can you imagine a ring-tailed son-of-a-gun like that one? No trouble! Oh, no, no trouble at all! Maybe he thought us being in front, we would kinda break the fall for him. He began circling his busted skyrocket in wide loops, and the first thing I knew we was skimming trees and housetops.

The trouble was the fields in that country was too small, and there was too many obstacles in the way, and we was goin' too fast to let a little thing like a greenhouse stop us. The only indication we had of goin' through that greenhouse was a merry tinkle of broken glass and a whiff of flowers in bloom. Two big red geraniums fanned my cheeks; a bunch of gladiolas settled in my streamin' hair: and my lap was suddenly piled high with an assortment of posies and ferns.

On, like a wild bounding antelope we went, over a clover-field, bouncing over a culvert, across a road, into a cemetery, sowin' flowers and airyplane parts over the graves, merrily knockin' down tombstones and monuments right and left.

The thrill of a lifetime? Well, I hope to tell you!

* * * * *

Once I thought I lost an eye in an apple orchard, but it wasn't knocked out for good. It got all right in a couple of months. We also visited a watermelon patch, but soon left it behind after a good deal of crunching, and uprootin' of trailin' vines.

Bumping across a terrorized countryside at the speed of a comet, we met head-on with a herd of geese, and their goslings trooping innocently behind. A large cloud of feathers arose and was gone. A big red barn took a wing from us; a henhouse got the other. The paddle had busted in ten thousand splinters when crossin' the cornfield.

A creek loomed ahead, but it was a shallow one, and we forded it successfully. Had it not been for the opposite bank, which rose straight in the air, there is no tellin' how much farther we would have roamed, scattering death and destruction in our wake. But even that go-devil of an outfit couldn't get the best of a bank composed mostly of large rocks. There was a terrible crash; then the peaceful silence of an afternoon in the country.

I don't recollect much after that, only it seemed that I had a wonderful dream in which I lived over some of the past happenings. Bearcat floated through the air by my side. There was a ring of light around his big hat, and he flopped around with the help of a pair of wings. His open mouth was relaxed in the loving smile of an angel, and a large floral wreath bearing the golden inscription *Rest in Peace* hung about his shoulders. You could just imagine the mourners, heads bowed in sorrow, and the soft, mellow notes of an organ playing, "Here comes the bride—"

* * * * *

I could have remained in that position for hours, thinking beautiful thoughts. Our breathless dash across the country was something to look back on and write home about—the informal visit in the greenhouse, the evening scamper across the cemetery, the good-natured pushin' over of

tombstones, the playful manner in which we had destroyed orchards, cornfields and barnyard fowls; I'll tell you, it was something to quicken a man's breath and make his eyes sparkle!

Then a harsh note tore me from this dream—several harsh notes, to be exact. I opened one eye—and then I shut it again very sudden.

The dream had changed now to a nightmare. Loud, grinding voices argued back and forth. I pinched myself to make sure I was awake....

I lay in a bed, a nice clean white bed. The well-known hospital smell was in the air. Cautiously, I opened the eye again to make sure I'd seen right the first time.

A group of excited people stood by my bed. Two of the figures I recognized only too well. One was tall and had a long flowing spotted mustache. The other had black skirts and a terrible disposition. Old Walrus and Battling Mary!

"Yes indeed, it's them!" screamed Mary. "Don't I know the scoundrels? Didn't I see them destroy hundreds of dollars' worth of merchandise for me? Will I, or will I not, get justice?"

"Be calm, madam, be calm!" said a soothing voice. "They are in no shape to be questioned now. They have some money which we have deposited in our safe. We feel sure it will more than cover your claims—"

* * * * *

The group moved from the bed, and I took a look around. Bearcat was stretched out in another cot, close by. Unconsciousness had give him a look of almost human intelligence.

Our good bronk-ridin' money to go for ruint lingerie!

Just then I saw old Walrus glarin' at me. His Adam's apple was travelin' at a terrific rate of speed. Gosh, that man was mad! I remembered him wallowin' under the dummies and all the silk what-nots—and I covered up my head, and the white sheet began to shake, quiver and roll.

A nurse run out and pulled the covers from my tearful face. She was a stunning-looking girl!

She patted my pillow, a smile on her lips. Oh, well, maybe things wasn't as bad as they looked.

"You're a funny one," said the nurse. "Unconscious one minute, laughing fit to be tied the next. You cowboys are strange fellows."

"Lady," said I, "you don't know the half of it!"

[Transcriber's note: This story appeared in the March, 1929 issue of *The Blue Book* magazine.]

*** END OF THE PROJECT GUTENBERG EBOOK BUCKIN' THE AIR

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the

collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™

License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain

Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the

electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY

DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance

with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541.

Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the

United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.